

CIVIL PROCEDURE

JURISDICTION AND VENUE

Personal jurisdiction: this is all about fairness to defendant.

- **General jurisdiction:** Plaintiff can sue defendant for anything *generally*. Look for **consent** (express or implied due to failure to properly object), **presence** (continuous and systematic contacts with the state or present in state when served), or **domicile**.
 - >> A **person** is domiciled in the state that is her *permanent home* where she intends to stay *indefinitely*.
 - >> A **corporation** is domiciled in the state where it is *incorporated* and where its *principal place of business* is located.
 - >> A **partnership or LLC** is domiciled where its *partners or members* are *citizens*.
- **Specific jurisdiction:** The lawsuit must arise out of the specific contacts with the state (e.g., a tort committed in the state or a contract or business transaction arising out of contacts with the state). It must be both **constitutional under the state constitution** (e.g., a long-arm statute) and **constitutional under the Due Process Clause of the U.S. Constitution** (there must be minimum contacts with the forum state so as not to offend "traditional notions of fair play and substantial justice").

Subject-matter jurisdiction: this is all about the power of the federal court to hear a certain kind of case.

- **Federal-question jurisdiction:** It must arise out of federal law. The federal issue must be on the face of the well-pleaded complaint.
 - **Diversity jurisdiction:** there must be *complete diversity* at the *time the case is filed* and the amount in controversy must exceed *\$75,000*.
 - **Supplemental jurisdiction:** State claims may be brought in a federal case if they arise out of a *common nucleus of operative fact*. Further, nondiverse parties may be sued in a diversity case. **Tip:** in a diversity case, a defendant may implead a nondiverse party, but a plaintiff may not sue a nondiverse party directly if the only basis for the lawsuit is diversity.
- Removal:** A defendant may remove a case within *30 days* of being on notice that the case is removable (but not over a year in diversity cases unless plaintiff acted in bad faith). Defendants cannot remove on diversity grounds if any defendant is domiciled in the state in which they are sued. **Tip:** When a defendant removes a case, do not look to traditional venue rules to determine venue. A defendant has only one venue option—it may remove the action to the federal court that geographically embraces the state court where the suit was filed.
- Remand:** if a plaintiff wishes to file a motion to remand to state court due to failure to comply with procedure requirements of the rule, it must do so within 30 days after removal.

Venue: The state has personal jurisdiction over defendant. Where in the state does plaintiff sue?

Venue is proper where any defendant *resides* if all defendants reside in the same state or where a *substantial part of the events* or omissions giving rise to the claim occurred. A court may transfer a case to a different venue in certain circumstances:

- >> **Transfer to proper venue:** Occurs if the case is filed in the wrong venue. The law of the *transferee court* applies.
- >> **Transfer to more appropriate forum:** Occurs when there is a more convenient forum for the case. The federal court may transfer it in the interests of justice. The law of the *transferor court* applies.
- >> **Forum non conveniens:** if a case should be litigated in a different forum (e.g., a different country) a court may dismiss the case.

Service: Plaintiff is ready to start the lawsuit. How does plaintiff let defendant know about it?

Plaintiff must serve defendant with a summons and copy of the complaint. The process server must be at least 18 years old and not a party to the case. A plaintiff can use the following (SAID) methods to serve an individual:

- >> **state law:** follow the state law methods where the federal court is located or where service is made,
- >> **agent:** deliver a copy of the summons and complaint to an agent appointed by defendant or law,
- >> **individual:** deliver a copy of the summons and complaint to the individual personally, or
- >> **dwelling:** leave a copy of the summons and complaint at the individual's dwelling or usual place of abode with someone of *suitable age and discretion* who resides there.

Serving a corporation: to serve a corporation, a plaintiff may use the *state law methods* where the district court is located or where service is made, or it may serve an officer, a managing or general agent authorized, or any other agent appointed to receive service.

Waiver: A plaintiff may ask a defendant to waive formal service of process by sending the complaint, two copies of a waiver form, and a prepaid means for returning the form via first-class mail or other reliable means. If defendant waives formal service, it has 60 days to answer the complaint (rather than 21). If defendant does not, it must pay for formal service of process.

PRETRIAL PROCEDURES

Pretrial procedures—this tells you what to file and how to prepare your case

Complaint and answer

- A **complaint** must be served within 90 days after it is filed. A response (answer or motion) must be served within **21 days** (or 60 if formal process was waived) after the complaint is served.
- A **pleading** may be amended as of right within **21 days** after service (or if the pleading requires a responsive pleading, 21 days after service of the responsive pleading or motion). After 21 days, a party may amend its pleadings with consent of the other party or the court. The court will freely give leave when justice so requires.

Joinder of claims and parties

- **Joinder of new claims:** Once a party has one properly filed claim, it can bring all claims if the court has jurisdiction. This applies to plaintiff's claims as well as defendant's **counterclaims** (e.g., suing plaintiff) or **cross-claims** (e.g., D v. D or P v. P).
- **Counterclaims:** Federal law recognizes **compulsory counterclaims** where defendant must bring a counterclaim if it arises out of the same transaction or occurrence or defendant loses the right to bring the claim later. A **permissive counterclaim** (i.e., one not arising out of the same transaction or occurrence) may be filed but does not have to be filed.
- **Cross-claims:** A cross-claim is a claim asserted by one party against a coparty (i.e., D v. D or P v. P). **It must arise out of the same transaction or occurrence as the initial claim.** A cross-claim is not compulsory.
- **Joinder of parties**
 - >> **Plaintiffs joining plaintiffs:** plaintiffs may sue together if they assert a right to relief jointly, severally, or in the alternative with respect to claims arising out of the same transaction or occurrence and involving a common question of law or fact.
 - >> **Defendant adds defendant:** A defendant may *implead* a new claim against a new party if that party may be liable to defendant for part or all of the recovery. This must be filed within 14 days of serving the answer, otherwise leave of court is required.
 - >> **Intervention:** A movant may intervene as a matter of right if: (1) it has an interest related to the property or transaction that is the subject of the action, (2) disposition without the movant may impair or impede the movant's ability to protect its interest, and (3) its interest is not adequately represented by the existing parties. The motion must be timely made. A court may grant permissive intervention if the party has a claim or defense that shares a common question of law or fact with the main action.
 - >> **Interpleader:** This occurs when the holder of a property subject to conflicting claims (usually an insurance company that holds a common fund) may file a lawsuit as a plaintiff and join all claimants to avoid the possibility of double liability. Under statutory interpleader, \$500 is enough and minimal diversity is enough (i.e., if there is diversity between any two of the claimants) to get into federal court.

- **Class actions:** Requirements include: **commonality**, **adequacy**, **numerosity**, **typicality**, and (with common question suits) plaintiffs need to show **superiority** and that common questions **predominate**. **The Class Action Fairness Act (CAFA)** allows a federal court to have jurisdiction over a class action if there are 100 or more plaintiffs seeking over \$5 million and they have minimal diversity.

Preliminary measures: For a **temporary restraining order**, notice to the other party is not needed. This is a stopgap measure that should not last longer than 14 days unless good cause is shown. For a **preliminary injunction**, notice must be given to the adverse party. A preliminary injunction is equitable relief with the object of preserving the status quo.

Discovery: Parties may discover anything that is **relevant** and not **privileged**. Parties can use interrogatories (25 per side), depositions, and requests to admit. **Tip:** **depositions and subpoenas are the only methods that may be used on a nonparty.**

- **Work product** (prepared in anticipation of litigation) is not discoverable unless there is a **substantial need** and **undue hardship**. However, an attorney's mental impressions are never discoverable.
- **Conferences and disclosure**
 - >> **26(f) conference:** In federal court, the **26(f) conference** is where initial disclosures of (DISS) damages calculation, insurance agreements, the identity of supporting witnesses, and supporting documents are made and a discovery plan is outlined. **Tip:** **unfavorable witnesses or documents do not need to be disclosed.**
 - >> **16(b) conference:** Next, the 16(b) scheduling conference is held. The court enters a scheduling order and deadlines for motions.
 - >> **Pretrial disclosures:** 30 days before trial, parties must disclose the identity and reports of experts, the names of witnesses to be called at trial, and documents and depositions the parties plan to offer at trial.
- **Rule 11 sanctions** are made if an improper paper is presented to the court. However, if a motion is made by a party to impose Rule 11 sanctions, that party must give the other party 21 days to withdraw the offending paper prior to filing the motion with the court.

LAW APPLIED BY FEDERAL COURTS

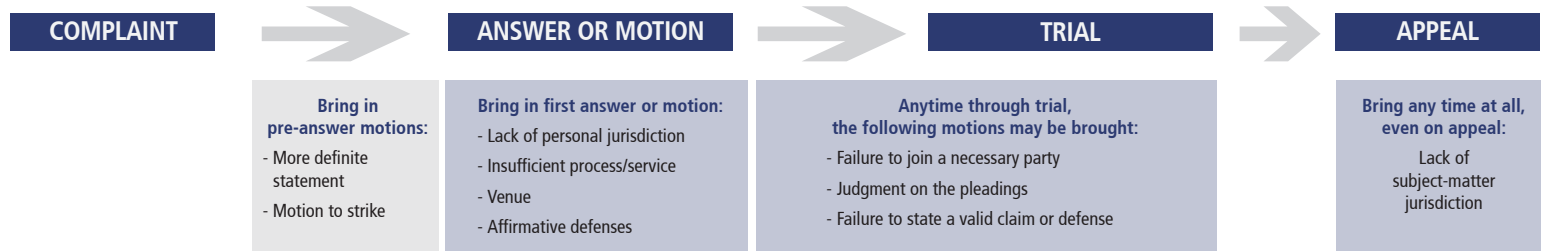
- **State law in federal court:** If a case is in federal court under diversity jurisdiction, **federal law** generally applies to **procedural issues**. **Tip:** this includes the **Federal Rules of Evidence or Civil Procedure**, when to bring a class action, and the right to a jury trial. Generally, state law applies to substantive issues. **Tip:** this includes which party has the burden of proof, which statute of limitations applies, caps on damages, elements of claims, and choice of law rules.
- **Federal common law** is applied where Congress has given the courts the power to develop law (e.g., bankruptcy law, admiralty, and civil rights) or where a federal rule is **necessary** and state law would **frustrate** federal objectives. (This latter category is very narrow and usually comes up when a case would directly affect the U.S. government.)
- **The *Klaxon* doctrine:** A federal court sitting in diversity must apply the choice of law approach prevailing in the state where it sits. **Tip:** this is a **MBE favorite!**

JURY TRIALS

- **Jury trial—Seventh Amendment:** A jury pool must be taken from a cross section of the community. **Tip:** the jury itself does not need to be diverse.
- **Jury trial request:** For an issue triable by jury, a party can demand a jury trial by serving the other parties a written demand (which can be in a pleading) "no later than **14 days** after the last pleading directed to the issue is served." A proper demand may be **withdrawn with all parties' consent**.
- **Number:** A jury must begin with at least six and no more than 12 members. Unless the parties agree otherwise, the verdict must be **unanimous** and returned by a jury of **at least six**.
- **At the close of the evidence,** a party may file and furnish to every other party written requests for the jury instructions.
- **Objecting to jury instructions:** a party who objects to the instructions must do so in a timely manner, on the record, stating the matter objected to and the grounds.
- **Plain error:** an appellate court may consider a plain error in the instructions, even if it has not been properly preserved or objected to, if the error affects **substantial rights**.

MOTIONS MADE DURING AND AFTER TRIAL

	DIRECTED VERDICT (JUDGMENT AS A MATTER OF LAW—JMOL)	RENEWED JMOL	NEW TRIAL	RELIEF FROM JUDGMENT	APPEAL
STANDARD	If there is no substantial evidence to support a verdict for the nonmoving party, a directed verdict will be given. The court looks at whether plaintiff has met its burden of production .	Under federal law, the party must have already made a motion for JMOL at some point. Here, the party is renewing it and must show the evidence is insufficient as a matter of law to support the jury's verdict.	A new trial is granted if there were errors in the trial that tainted the jury's decision-making or if the jury's decision was against the great weight of evidence . It also may be granted if the verdict is excessive (i.e., remittitur) or inadequate (i.e., additur, which is not recognized by federal courts).	If there are circumstances like mistake, fraud, or new evidence that could not have been discovered, the court may grant relief from judgment.	Final judgments generally are appealable (exceptions: preliminary injunctions, interlocutory orders, and collateral matters). Orders granting a directed verdict or denying a new trial are appealable.
TIMING	Defendant may file this motion after plaintiff rests its case. Either party may file it after defendant rests its case.	Within 28 days of entry of the jury's verdict	Within 28 days of the entry of the jury's verdict. The court may even order a new trial on its own.	Generally, within one year of the judgment (but there are exceptions, e.g., fraud).	Generally, within 30 days after entry of judgment.



DISPOSITIVE MOTIONS

- **Motion for summary judgment:** The question is whether there is a genuine issue of material fact. The **moving party** must show there is no genuine issue of material fact. The **burden then shifts to the nonmoving party**, which must show there is a genuine issue of material fact. The motion is looked at in the light most favorable to the nonmoving party. **Tip:** the court will deny the motion if the case involves something subjective like motive, intent, or credibility.
- **Failure to state a claim upon which relief can be granted:** a defendant brings this motion, which essentially states, even if everything plaintiff says in its complaint is true, there is no recognized violation of any legal rights.

VERDICTS AND JUDGMENTS

- A **default** is entered by a clerk if there is no timely answer. **Tip:** The default itself does not give plaintiff any rights to collect money. Plaintiff must seek a default judgment.
- **Default judgments** are made by a clerk for a "sum certain" (and can be without notice) or by a judge (which requires seven-days' notice if defendant has appeared).
- **No progress dismissals:** These usually are with prejudice. **Tip:** "with prejudice" means that the lawsuit cannot be refiled.
- **Involuntary dismissals** (e.g., for failing to comply with a court order) usually are with prejudice.
- **Voluntary dismissals** by plaintiff generally are without prejudice.
- **Exception—two dismissal rule:** if plaintiff voluntarily dismisses a case twice, the second dismissal is with prejudice and plaintiff cannot refile the lawsuit or one that arises out of the same facts.

RES JUDICATA (CLAIM PRECLUSION)

SAME CLAIM	SAME PARTIES	FINAL JUDGMENT	ON THE MERITS
Use the transaction or occurrence test : If it was or could have been asserted because it was part of the same transaction or occurrence, it is the same claim. Tip: compulsory counterclaims are also barred.	The parties must be the same or in privity.	This means it is not modifiable (e.g., child custody, alimony, etc.).	This includes a full trial, a dismissal with prejudice, claims decided on summary judgment or JMOL, or default or consent judgments. Tip: a judgment may not look like it is "on the merits," but it still may be considered to be for these purposes (e.g., a dismissal with prejudice for failing to comply with a discovery order is "on the merits").

Effect of preclusion: The **Full Faith and Credit Clause** requires that judgments from state courts be given the same effect in any other court that they would be given in the state in which they were handed down. When determining the preclusive effect of a prior judgment, look to the law of the court that decided it. So, if a judgment would be held to have a nonpreclusive effect in the state it was handed down in, then it cannot have a preclusive effect in any other court.

COLLATERAL ESTOPPEL (ISSUE PRECLUSION)

SAME ISSUE	ACTUALLY LITIGATED	ACTUALLY DECIDED	"NECESSARY"
The issues must be exactly the same.	The issues need to be actually raised and litigated.	The issues need to be actually decided in trial.	The decision must be "necessary" to the court's judgment.

Note: **Nonmutual collateral estoppel** allows a party to invoke collateral estoppel against a party who litigated and lost on an issue in a prior action. **Defensive nonmutual estoppel** means issue preclusion may be raised as a shield by a new defendant. Some states do not allow **offensive nonmutual collateral estoppel** where it can be used as a sword by a new plaintiff (but federal law allows this).